

**BEFORE THE
FEDERAL MARITIME COMMISSION**

COMBUSTION STORE LIMITED,	)	
	)	
Complainant,	)	
	)	
v.	)	Docket No. 15-02
	)	
UNIGROUP WORLDWIDE – UTS,	)	
	)	
Respondent.	)	
_____	)	

**RESPONDENT UNIGROUP WORLDWIDE, INC.'S
STATEMENT OF NON-OPPOSITION TO COMBUSTION STORE LIMITED'S
MOTION TO AMEND COMPLAINT**

Complainant, Combustion Store Limited (“Combustion”) filed its Complaint against Unigroup Worldwide, Inc. (“UniGroup”) on May 2, 2015. Combustion alleges violations of the Shipping Act as a result of a transaction in which two used aviation engines were shipped from the United States to the United Kingdom, but were received, according to the Complaint, without associated maintenance records (log books). On June 19, 2015, UniGroup filed its Motion to Dismiss the Complaint. Combustion filed its Opposition to UniGroup’s Motion to Dismiss and separately filed a Motion to Amend Complaint to Provide Additional Verification (“Motion to Amend”) on July 17, 2015.

The Commission's Rules require complaints to be "sworn" and "verified." 46 C.F.R. § 502 .62(a)(1) - (3). However, neither the original Complaint nor the Amended Complaint contains the hallmarks of a notarization issued in the United States. Plaintiffs allege to have followed the model complaint on the Federal Maritime Commission’s website. *See* Opp. at 3. Yet, Combustion neglected to provide the sworn statement or notarization as outlined by the model document. *See* <http://www.fmc.gov/assets/1/Page/FormalComplaintFormat.pdf> (last

visited July 24, 2015). UniGroup further notes that the “verifier” of the Complaint, Sacha Vincent, endeavors to verify the accuracy of conversations between Damon Garcia, Excel’s representative, and James Goswick, Southeastern Freightlines’ driver, who allegedly took possession of the shipment at some point in the transportation chain. Sacha Vincent was not present during those events or conversations.

Combustion now seeks leave to file an Amended Complaint that attempts to cure any deficiencies in the verification of the original Complaint. Combustion correctly notes the Rule 15 of the Federal Rules of Civil Procedure encourages the Court to allow liberal amendments to pleadings. And as noted in its Motion to Dismiss, UniGroup anticipated that Combustion would amend its Complaint to correct the defects in its verification. *See* Mot. to Dismiss at 3, n. 4. However, Combustion did not confer with counsel for UniGroup before seeking to Amend; thus requiring UniGroup to submit this response.

UniGroup hereby notifies the Commission and counsel for Combustion that UniGroup does not oppose Combustion’s Motion to Amend. UniGroup’s Statement of Non-Opposition to the Amendment does not waive any defenses UniGroup may have should the Presiding Officer not grant the pending Motion to Dismiss, including a statute of limitations defense to the Complaint.

Respectfully submitted, this 24th day of July 2015, by:


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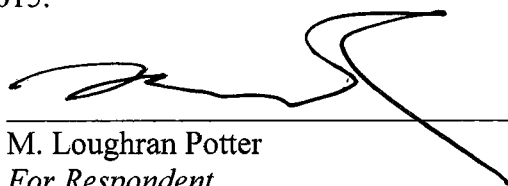
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon counsel for Complainant (Sean C. Griffin and Richard D. Gluck) via electronic mail and by mailing a copy via the US Postal Service.

Dated at 3:00 pm this 24th day of July, 2015.


M. Loughran Potter
For Respondent,
UniGroup Worldwide - UTS